

Job Acquire Program by Netbounce Placement LLC — Terms of Enrollment
(Hereinafter referred to as “Agreement”)

Made as of (the “**Effective Date**”)

Between

Netbounce Placement LLC, a company having its principal place of business at 2404, 1007 N Orange St. 4th Floor, Wilmington, DE, New Castle, US 19801. It is duly incorporated under the laws of the United States. (Hereinafter referred to as “Netbounce”)

And

Name:

Address:

Contact:

(Hereinafter referred to as “**Candidate**”)

(**Netbounce** Placement LLC and Candidate are collectively referred to as “**Parties**”)

Netbounce Placement stands out as a premier job-seeking service, distinguished by our extensive nationwide searches within the United States. Our mission is to identify the most suitable candidates for a wide range of job roles. Leveraging our in-depth experience in U.S. immigration law, we extend our reach beyond national borders to place qualified individuals with F1, H1B, H4, GC, and USC visas. What truly sets NetBounce apart is our pioneering combination of job search and interview services, enabling us to adeptly fulfil even the most challenging staffing needs.

RECITALS

The Candidate desires for the Netbounce to find them a job and, by registering, unconditionally agrees that the Netbounce may use and disclose some of the information provided to the Netbounce by the Candidate at its discretion to secure the Candidate a money-earning opportunity, all subject to the provisions of this Agreement.

By continuing to work with the **Netbounce**, the Candidate offers the **Netbounce** unequivocal consent to contact the Candidate via mass mail and automated calls until the Candidate requests to opt-out.

THE PARTIES HEREBY THEREFORE AGREE AS FOLLOWS:

1. DEFINITIONS:

- 1.1. "Administration Fee" means the Fees chargeable by the Netbounce for work to be carried out by the Netbounce for the Candidate's profile.
- 1.2. "Agreement" means the contract between Netbounce and the Candidate for the provision of the Services incorporating this agreement.
- 1.3. "Agent/ Netbounce" means a company having its principal place of business at 2404, 1007 N Orange St. 4th Floor, Wilmington, DE, New Castle, US 19801. (We / Merchant)
- 1.4. "Candidate" means a person who is seeking work opportunity via Netbounce's services (you).
- 1.5. "Employee" means a Candidate who has been offered a job by an Employer and has accepted that job.
- 1.6. "Employer" means any individual, firm, or corporate body (which expression shall, where the context so admits, include its successors and assigns) which the Candidate is seeking to work for.
- 1.7. "Fees" means all Fees payable to the Netbounce for the services
- 1.8. "Salary" means the Candidate's gross base pay paid by his/her Employer. Upon accepting the employment.
- 1.9. "Interview Guarantee" means Netbounce guarantees to provide the number of interviews promised under the selected plan through its resume marketing and placement services.

2. PREVALENT TERMS

- 2.1. The Candidate shall always be on time for interviews, and training workdays and agrees to inform the Netbounce 24 hours in advance by email or telephone of any cancellation.
- 2.2. When the Employer offers the Candidate a job, the Candidate agrees to immediately notify Netbounce of any employment-related data.
- 2.3. Immediately after any meeting or conversation between the Candidate and the Employer, the Candidate must notify the Netbounce of the outcome of that meeting or conversation prior to any Engagement.

- 2.4. The candidate is obligated to accept any job offer secured through Netbounce services that aligns with the standard USA IT market rate and is deemed suitable for their professional profile. Failure to comply with this requirement will be considered a breach of the agreement.
- 2.5. Netbounce is not liable to assist in any assessments. However, for final round assessments, Netbounce will provide the contact information of a technical person who can assist the candidate. The payment for this assistance will be made by the candidate, and Netbounce will reimburse the amount at the time of the offer letter. Any calendar invite received by the candidate from a any company via Netbounce will be considered as an official interview.
- 2.6. The Candidate agrees to use the designated Netbounce marketing email address exclusively for all enrollment and placement-related communications. The Candidate shall not forward, transfer, or share any data or communication from the marketing email to any personal email address, nor provide a personal email to recruiters or clients. Any violation of this provision shall be considered a breach of this Agreement and may result in appropriate action.
- 2.7. All initial interviews, including screening rounds, shall be deemed official interviews under this Agreement, as next interview rounds are contingent upon the candidate's performance in such initial interviews. Only interviews coordinated through NetBounce Placement that are relevant to the candidate's professional profile and for which the candidate is eligible to work under applicable U.S. laws and visa regulations shall be considered.
- 2.8. If a candidate progresses through multiple rounds of interviews with the same company, each round will be counted as a separate interview, as these opportunities are a result of the expert resume and interview preparation services provided by Netbounce.
- 2.9. If the Candidate was successful in getting placement via the Netbounce but failed to notify the Netbounce and continued earning, the Candidate agrees to pay the Netbounce with the fees as stated in this agreement.
- 2.10. If the candidate delays accepting a job offer, loses the offer due to counter-negotiations, or by negotiations related to sponsorship terms, Netbounce will not be held liable. While Netbounce may help upon the candidate's request, the associated risks and consequences will remain the sole responsibility of the candidate.
- 2.11. The Candidate agrees not to raise any false or unauthorized payment disputes for services rendered under this Agreement. In the event of a dispute, refunds (if any) shall be issued strictly in accordance with the terms of this Agreement, including eligibility for partial refunds. Netbounce reserves the full right to recover any outstanding or disputed payments through legal means.
- 2.12. If the candidate receives an offer letter through personal applications using the resume provided by Netbounce, the candidate agrees to adhere to the payment terms as outlined in this agreement.

2.13. Netbounce Placement agrees to provide its services for a period of six (6) months, commencing from the first day of marketing activity. If the candidate does not secure a job placement within this six-month period by declared services, Netbounce Placement reserves the right to conclude and terminate the services rendered under this agreement without further obligation.

2.14. This section outlines key policies related to the service period, including handling independent job offers, the process and discretion involved in securing sponsorships, and the consequences of non-compliance with payment obligations.

2.15. If the candidate is within the service period and receives an offer independently, Netbounce will not be liable for any refund after one month as clearly described in refund policy. Parallel marketing efforts may disrupt marketing flow for the same profile and carry the risk of blacklisting.

2.16. Netbounce does not commit to providing jobs that offer sponsorship. Sponsorship decisions are solely at the discretion of the employer based on their assessment of the candidate's value, skills, and knowledge. If the Employers deem the candidate an asset, they may choose to provide sponsorship. Based on past data, 80% of candidates placed by Netbounce have received sponsorship from employers.

2.17. If the candidate attempts to evade their obligations to Netbounce by skipping installments, making false promises, or engaging in any payment delays, Netbounce reserves the right to seek legal action. Such actions may result in the cancellation of the candidate's visa by USCIS or by their respective university's DSO, as well as potential termination from their employer.

2.18. Netbounce will continue to provide services for a period of 6 months, after which the service term will conclude.

3. NETBOUNCE'S LIABILITIES:

3.1. The Netbounce undertakes and agrees with the Candidate:

- a) To assist Candidate, in landing them a job that suits best to their profile.
- b) Netbounce is liable to provide the interviews of company that ensures a candidate a 40 hours of work per week.
- c Make available additional bonus Content to Candidates such as Templates, guides, and study plans.
- d) Make available to the Candidate a support desk, to resolve any technical issues, and to answer the questions specific to the training materials.
- e) Netbounce is liable for assisting the candidate with the background check process and the onboarding process at the company where they are hired.
- f) Netbounce is liable to assist the candidate with background verification screening. If Netbounce fails to do so, the payment made by the candidate at the time of receiving the offer letter will be refunded, and remarketing efforts will be initiated.

4. CANDIDATE 'S LIABILITIES:

4.1. The Candidate undertakes and agrees with the Netbounce:

- a) The candidate will have to make reasonable efforts to complete the goal of getting a job that they have set for themselves with the Netbounce.
- b) The candidate shall make instalments and slot payments as specified in this agreement. Failure to do so will be considered a breach of the agreement.
- c) If the candidate is on F1 Visa and get enroll with Netbounce prior to his/her start of Employment Authorization Document date (EAD) his/her marketing will start 1 week prior to the start date of his/her EAD.
- d) The candidate must sign the enrollment agreement, complete our final onboarding documents after receiving the offer letter, and provide all necessary documentation to Netbounce. The candidate is liable to pay the offer letter amount on the day of offer letter or on the day they receive the Pre background check from the employer, in case where the background check is received before the employer issues the offer letter.
- e) The candidate acknowledges that the outcome of interview assistance or any technical assistance provided by Netbounce, including RUC, TQC, and Training, may vary. This variability can be influenced by the availability of technical personnel and the candidate's knowledge and capabilities. This acknowledgment will be considered during the refund process.
- f) The candidate will consider this agreement as the standard proof of committed service. Any other commitments or promises made by the salesperson will not be considered during the refund process. If any promise or commitment is made by the salesperson, the candidate must submit proof of such communication via email.
- g) If the candidate has received sufficient services and is unable to crack the interviews despite receiving adequate assistance, and if the funds paid by the candidate are exhausted, Netbounce will cease further services. Upon request, Netbounce will provide invoices for the services rendered for the candidate's profile.

5. PAYMENT TERM:

5.1. Enrollment Plan type:

5.2. Final payment conditions:

5.3. Current agreed payment condition:

6. REFUND POLICY:

- 6.1. As per this agreement, please note that we do not offer refunds*, and all sales are considered final. The candidate needs to understand and acknowledge that refunds are only applicable if the candidate chooses to enroll in our Interview Guarantee Plan, which is subject to specific refund conditions outlined below.
- 6.2. Additionally, the candidate should be aware that this document will serve as evidence of services provided in case of a dispute, thereby preventing any attempts to dispute the transaction. Any payments made by the candidate through a relative's, friends, or any other associated person's credit card are not subject to getting the money back from disputes or chargebacks.
- 6.3. The candidate agrees to promptly communicate any dissatisfaction or concerns regarding these services during the course of the program, allowing Netbounce a reasonable opportunity to address and improve the same, including arranging additional sessions if required. Failure to raise such concerns during the service period will be considered as acceptance of the services provided, and such claims will not be considered at the time of refund evaluation.
- 6.4. Refund requests may be denied if there is third-party involvement(relative/friend) on behalf of the candidate.
- 6.5. If the candidate independently secures a job after one month from the Date of Enrollment (DOE), no refund is applicable as per the terms.

Refund Terms and Conditions:

- 6.6. Eligibility for Refund: To be eligible for a refund, the candidate must have formally enrolled in the Interview Guarantee Plan provided by Netbounce. Netbounce is not obligated to issue any refund if the candidate fails to meet their responsibilities as specified in the agreement.

9. AMENDMENT:

This Agreement may only be amended in writing and signed by duly authorized representatives of the Parties.

10. ASSIGNMENT:

Subject to the following, neither Party may assign, delegate, subcontract, mortgage, charge or otherwise transfer any or all of its rights and obligations under this Agreement without the prior written consent of the other Party.

11. ENTIRE AGREEMENT:

This Agreement contains the whole Agreement between the parties and supersedes and replaces any prior written or oral Agreements, representations or understandings between them. The parties confirm that they have not entered into this Agreement based on any representation that is not expressly incorporated into this Agreement. Nothing in this Agreement excludes liability for fraud.

In the event the candidate breaches the agreement, Netbounce reserves the legal right to take appropriate legal action through its affiliated law firms in the USA. Netbouncemay serve a legal notice to the candidate's previous addresses and has the right to pursue legal action in the candidate's home country as well.

12. WAIVER:

No failure or delay by the Netbounce in exercising any right, power, or privilege under this Agreement shall impair the same or operate as a waiver of the same nor shall any single or partial exercise of any right, power, or privilege preclude any further exercise of the same or the exercise of any other right, power or privilege. The candidate acknowledges that external factors, such as fluctuations in the market, may influence outcomes, and this should be considered. The rights and remedies provided in this Agreement are cumulative and not exclusive of any rights and remedies provided by law.

13. LAW AND JURISDICTION:

The validity, construction, and performance of this Agreement shall be governed by US law and shall be subject to the exclusive jurisdiction of the US courts to which the Parties submit.

By accepting this Agreement, the Candidate acknowledges that they have read and understood the terms related to payment terms, policies reimburse of payment and their procedure, etc. The Candidate further agrees that this clause is binding and enforceable.

CANDIDATE ACKNOWLEDGEMENT:

I acknowledge that I have read and understand this Agreement, I am authorized to bind the End User and agree to be bound by the terms of this Agreement.

IN WITNESS WHEREOF the parties have executed this Agreement by the duly authorized person of the Parties.

Authority Signature

Candidate Signature